Lead Broker Blueprint by Lorenzo Marietti

Module 1 deliverable

Industry Glossary

How to use this glossary

Every term used in Module 1 is defined here, plus several adjacent terms you will encounter in trade publications, industry podcasts, and buyer/seller conversations. Definitions for regulatory terms are prefixed with “Regulation:” in red. A primary-source citation appears under each regulatory entry where applicable.

As with the rest of the course, this is a research-based reference, not legal advice for your situation. Cite ranges and rules are current as of May 2026; verify against primary sources before relying on any specific claim.

A

ABA Model Rules of Professional Conduct *(also: ABA Model Rules)*

Regulation: the American Bar Association's template ethics rules adopted (with state-specific variations) by every U.S. state bar. The rules most relevant to legal lead generation are Rule 5.4 (fee-sharing with non-lawyers), Rule 7.2 (advertising and payment for recommendations), and Rule 7.3 (solicitation of clients).

Source: *ABA Model Rules of Professional Conduct (current edition).*

Advertiser

The end buyer of leads — the service provider (attorney, contractor, agent, lender, etc.) who closes the consumer. The only party in the lead chain that transacts directly with the consumer. Sometimes called "buyer" or "end client" in trade conversations.

Affiliate (lead generation)

An independent publisher or media buyer who runs traffic to a generator's offer and is compensated per lead, per call, or per converted customer. Affiliates are a major (often majority) source of inventory in insurance, financial services, and education lead generation.

Aggregator

A network that buys leads from many generators, normalizes and deduplicates them, and routes them to many advertisers under buyer-specific filtering rules. Aggregators carry inventory risk and typically operate consumer-facing brands. Examples: QuinStreet (insurance, finance), Modernize (home services), Legal Brand Marketing (legal).

Anti-Kickback Statute (AKS)

Regulation: federal statute (42 U.S.C. § 1320a–7b) that prohibits offering or receiving remuneration for referrals of items or services reimbursed by federal healthcare programs. Reaches some healthcare marketing and referral arrangements; should be analyzed together with EKRA in addiction-treatment and clinical-lab lead generation.

Source: *42 U.S.C. § 1320a–7b.*

Auto-dialer / ATDS *(also: Automatic Telephone Dialing System)*

Regulation: TCPA-defined equipment that can store or produce telephone numbers using a random or sequential number generator and dial them. The U.S. Supreme Court narrowed the definition in Facebook v. Duguid (2021). Equipment outside the ATDS definition is not subject to TCPA's autodialer-specific consent rules, but other TCPA rules (e.g., prerecorded voice, DNC) still apply.

Source: *47 U.S.C. § 227(a)(1); Facebook, Inc. v. Duguid, 592 U.S. ___ (2021).*

B

Boberdoo

A lead distribution platform widely used by mid-size networks across insurance, home services, and legal. Competes with LeadConduit, Phonexa, and Leadspedia in the distribution-software layer.

Buyer

Common shorthand for advertiser — the entity that purchases leads to acquire customers.

Buyer Profile

A categorization of advertisers by size, sophistication, and procurement style: solo operators (small volume, price-sensitive, light contractual norms), mid-size firms and franchises (moderate volume, formal contracts, dedicated intake), large advertisers (high volume, professional procurement, certified consent and audited quality required).

C

Call Tracking

Software that assigns unique phone numbers to traffic sources or campaigns to attribute inbound calls. Used by lead generators and pay-per-call operators to determine which campaigns produce qualified calls. CallRail, Invoca, and Retreaver are widely used; consent-to-record rules vary by state.

CAN-SPAM Act

Regulation: federal statute governing commercial email (15 U.S.C. § 7701 et seq.). Requires accurate header information, non-deceptive subject lines, a clear opt-out, and a physical postal address. Enforcement is the FTC's responsibility; civil penalties for violations.

> **Source:** *15 U.S.C. § 7701–7713.*

CCPA / CPRA

Regulation: California Consumer Privacy Act (2018) as amended by the California Privacy Rights Act (2020). Establishes notice, deletion, access, and opt-out-of-sale rights for California residents. Lead generators that sell lead data implicating California residents are likely "selling" personal information for CCPA purposes and must comply with associated opt-out mechanics. Many other states have adopted comparable laws (Virginia, Colorado, Connecticut, Utah, and ~14 additional states as of 2026).

> **Source:** *Cal. Civ. Code § 1798.100 et seq.*

Co-registration *(also: Co-reg)*

A flow in which a consumer filling out one form is presented with checkboxes opting them into additional, unrelated offers. Historically common in insurance and finance lead generation, increasingly disfavored from a compliance perspective. Many sophisticated buyers no longer accept co-reg-sourced leads.

Conversion Rate (intake)

The percentage of leads that become customers (or qualified prospects, depending on the buyer's stage definition). The single most important variable in the buyer's CAC math. In personal injury, broker-lead-to-signed-case conversion typically runs 5–15% depending on intake quality, vertical sub-niche, and traffic source.

Cost Per Acquisition (CPA)

Total marketing and sales cost to acquire one customer. CPA = CPL × leads per customer. Also used as a name for a pricing model ("CPA pricing") in which the lead provider is paid only when a downstream event occurs (booked appointment, signed retainer, closed sale).

Cost Per Lead (CPL)

Total marketing cost to acquire one lead. The most common pricing unit in the industry. CPL varies enormously by vertical, exclusivity, qualification level, and geography.

D

Do Not Call Registry (National DNC)

Regulation: federal registry administered by the FTC under the Telemarketing Sales Rule. Telemarketers must scrub their calling lists against the registry. Following the 2024 FCC update, the registry's protections explicitly extend to text messages. Statutory damages for violations range up to $51,744 per violation as of 2026.

> **Source:** *16 C.F.R. § 310; 47 C.F.R. § 64.1200.*

Double Sale

Operator slang for the practice of selling the same lead more than once — either as a shared lead distributed to multiple buyers simultaneously or as a sequential resale. Compliance posture depends on whether the consent record contemplated multiple sellers.

E

EKRA *(also: Eliminating Kickbacks in Recovery Act)*

Regulation: 18 U.S.C. § 220, enacted October 2018 as part of the SUPPORT for Patients and Communities Act. Prohibits offering or receiving remuneration for referrals to recovery homes, clinical treatment facilities, and laboratories. Read broadly to prohibit percentage-based or per-referral compensation for marketers in addiction treatment and clinical lab lead generation.

Source: *18 U.S.C. § 220.*

Endorsement Guides (FTC)

Regulation: FTC guidance on the use of endorsements and testimonials in advertising (16 C.F.R. Part 255), substantially revised June 2023. Clarifies what counts as an endorsement, material connection disclosure requirements, the role of AI-generated content, and the obligations of intermediaries. "Results not typical" boilerplate is no longer sufficient where atypical results are advertised.

Source: *16 C.F.R. Part 255; FTC press release, June 29, 2023.*

Exchange

A more open marketplace platform on which many supply-side and demand-side parties transact, often with minimal editorial control over inventory by the platform operator. Compare with network/aggregator, which is editorially curated and inventory-bearing.

Exclusive Lead

A lead sold to one buyer, and one only. Pricing is typically 2 to 5 times the corresponding shared lead price in the same vertical and is paid in exchange for the higher intake conversion rate exclusivity produces.

F

Facebook v. Duguid

Regulation: 592 U.S. ___ (2021). U.S. Supreme Court decision narrowing the TCPA's definition of "automatic telephone dialing system" to equipment that can store or produce telephone numbers using a random or sequential number generator. Many predicted broad reduction in TCPA exposure; in practice plaintiffs shifted to prerecorded-voice, consent-record, and DNC theories.

Source: *Facebook, Inc. v. Duguid, 592 U.S. ___ (2021).*

FCC One-to-One Consent Rule

Regulation: rule adopted by the Federal Communications Commission in December 2023 amending the PEWC requirement to be specific to a single seller. Scheduled effective date January 27, 2025. Vacated by the U.S. Court of Appeals for the Eleventh Circuit on January 24, 2025 in Insurance Marketing Coalition v. FCC. FCC formally abandoned the rule in September 2025. As of May 2026 not in force,

although many sophisticated buyers still demand one-to-one consent contractually as a defense posture.

> **Source:** *FCC CG Docket No. 02-278; Insurance Marketing Coalition v. FCC, No. 24-10277 (11th Cir. Jan. 24, 2025).*

FCC Revocation Rule

Regulation: FCC rule effective April 11, 2025. Consumers may revoke consent through "any reasonable means." Companies must honor revocation within 10 business days. One confirmation text within 5 minutes is permitted, provided it contains no marketing content. Revocation applies to all future calls and texts from the seller and its agents.

> **Source:** *FCC CG Docket No. 02-278 (revocation rule).*

FCRA *(also: Fair Credit Reporting Act)*

Regulation: 15 U.S.C. § 1681 et seq. Governs the collection, use, and sharing of consumer report information. Lead generation that involves consumer reports for credit, employment, insurance, or housing decisions is subject to FCRA's notice, dispute, and accuracy obligations.

> **Source:** *15 U.S.C. § 1681 et seq.*

Form Lead

A lead generated through a web form submission. Distinct from a pay-per-call lead, which is generated through a qualified inbound phone call. The default lead format across most consumer verticals.

FTC Reviews and Testimonials Rule

Regulation: 16 C.F.R. Part 465, effective October 21, 2024. Prohibits fake reviews (including AI-generated), buying or selling reviews, undisclosed insider reviews, review suppression, and fake social-media indicators. Civil penalties up to approximately $51,744 per violation.

> **Source:** *16 C.F.R. Part 465; FTC press release, August 14, 2024.*

G

Generator

An operator that creates leads at the source through paid media, SEO, content, email, or other marketing channels. The generator captures the consent record. Distinct from a broker (who typically buys leads from generators) and a network/aggregator (which curates inventory across many generators). Many operators play overlapping roles.

H

HIPAA Marketing Rules

Regulation: under 45 C.F.R. § 164.501 and § 164.508, covered entities must obtain HIPAA-compliant authorization for most uses of protected health information for marketing purposes. Healthcare lead generation that touches PHI must structure consent and data handling to fit within HIPAA's authorization framework or one of its narrow exceptions.

Source: *45 C.F.R. § 164.501, 164.508.*

I

Insurance Marketing Coalition v. FCC

Regulation: No. 24-10277 (11th Cir. Jan. 24, 2025). U.S. Court of Appeals decision vacating the FCC's one-to-one consent rule on the grounds that the FCC exceeded its statutory authority under the TCPA. The court held that PEWC must be "clear and conspicuous" but that Congress did not authorize the FCC to limit valid consent to a single named seller.

Source: *Insurance Marketing Coalition v. FCC, No. 24-10277 (11th Cir. 2025).*

Intake

The process by which a buyer's staff (or its software) converts a delivered lead into a qualified prospect or customer. Encompasses speed-to-call, qualification scripting, scheduling, and CRM management. Intake quality is the most important driver of buyer-side CAC.

J

Jornaya

A consent capture and verification vendor (now part of Verisk Marketing Solutions after a 2021 acquisition). Produces certified consent records used by buyers to defend against TCPA claims. Competes with TrustedForm (ActiveProspect).

L

Lead

A specific person who has, on a specific date, expressed interest in a specific service or product by performing an affirmative act (form submission, call, opt-in). Contrast with a contact (raw data without expressed interest), a qualified lead (a lead meeting contracted criteria), a prospect (a lead the buyer has begun working), and a customer (a transacted prospect).

Lead Aggregation

The activity of collecting leads from multiple generators into one inventory pool, with normalization, deduplication, scoring, and routing rules. Aggregators are a meaningful share of the network/exchange layer of the industry.

Lead Brokering

The activity of buying leads (or capturing and reselling intent) and selling them to advertisers, typically with some specialization by vertical, geography, or buyer profile. Brokers add value by bridging fragmented supply and demand.

Lead Buyer

Synonym for advertiser. The party that pays per lead and converts the lead into a customer.

Lead Distribution Platform

Software that receives leads, applies filtering and enhancement, and routes them to buyers. The four most commonly named platforms: LeadConduit (ActiveProspect), Boberdoo, Phonexa, and Leadspedia.

Lead Generation

Two uses in the industry. Narrow definition: the original creation of leads through marketing activity the operator directly controls. Broad definition: the entire industry (often used loosely to cover generation, brokering, aggregation, and pay-per-call together). The course uses the narrow definition.

Lead Purchase Agreement (LPA)

The contract between a lead provider and a buyer. Standard clauses cover price, exclusivity, lead specifications and qualification criteria, return and credit policy, payment terms, indemnification (including TCPA representations), and audit rights. Module 4 includes a sample LPA template with a legal-review disclaimer.

Lead Resale

The secondary sale of a lead — either redistribution of returned leads through the network or a multi-seller arrangement where the same lead is sold to additional buyers. Compliance posture depends on whether the underlying consent record contemplated downstream resale.

LeadConduit

Lead distribution platform owned by ActiveProspect. The dominant platform in the industry's middle layer. Receives leads from many sources, applies filtering, enhancement, and validation steps, and routes leads to buyers per contracted rules. Often paired with TrustedForm for consent capture.

Leadspedia

A lead distribution and CRM platform popular with affiliate networks. Competes with LeadConduit, Boberdoo, and Phonexa in the distribution layer.

Live Transfer / Warm Transfer

A delivery method in which a lead generator's call center qualifies a consumer on the phone, then transfers the qualified live call to the buyer (warm transfer typically includes a brief introduction from the transferring agent to the receiving agent). Priced significantly higher than form leads.

LTV *(also: Lifetime Value)*

The total gross profit a customer will generate over their relationship with the buyer. The numerator of every meaningful CAC ratio.

M

Mass Tort

A vertical in which a generator (or generator-broker combination) captures plaintiff leads for litigation involving a class of injured parties (e.g., 3M Combat Arms earplugs, Roundup, hernia mesh, Camp Lejeune, talc, hair relaxer). Per-signed-retainer prices in active mass tort cases run $1,500–$5,000+ depending on litigation specifics.

MediaAlpha

Publicly traded (NYSE: MAX) operator of an insurance lead exchange. Connects insurance and other consumer-finance demand with traffic-source supply at scale. 10-K and earnings disclosures are useful primary sources for insurance-vertical unit economics.

N

Network

A curated, inventory-bearing operator that buys leads from many generators and sells to many advertisers, adding value through filtering, scoring, and routing. Common synonym for aggregator in trade conversations.

NMLS *(also: Nationwide Multistate Licensing System)*

Regulation: licensing system administered by the Conference of State Bank Supervisors and used by state mortgage regulators. Mortgage lead generation often requires state-by-state licensing under NMLS. Module 3 covers state-specific obligations.

P

Pay-Per-Call

A monetization model in which the deliverable is a qualified inbound phone call to the buyer, not a form submission. Qualification criteria are contracted (geography, hours, minimum call duration, no recent duplicates). Common platforms: Ringba, Retreaver. Common verticals: insurance (Medicare, ACA, auto), home services, legal.

Per-Lead Flat Fee

A fixed dollar amount paid for each delivered lead meeting contracted specifications. The most common business model in the industry. Two variants: exclusive and shared.

PEWC *(also: Prior Express Written Consent)*

Regulation: the consent standard required under the TCPA for autodialed or prerecorded calls and texts to mobile numbers (and prerecorded calls to residential numbers) for marketing purposes. Must be a written agreement that clearly and conspicuously discloses the consumer is authorizing the seller to deliver advertisements or telemarketing using an automatic telephone dialing system or an artificial or prerecorded voice, that the consumer is not required to consent as a condition of any purchase, and that includes the consumer's signature (E-SIGN compliant signatures qualify).

> **Source:** *47 C.F.R. § 64.1200(f)(9).*

Phonexa

An end-to-end performance marketing platform with strengths in call routing, attribution, lead distribution, and CRM. Competes with LeadConduit and Boberdoo in some configurations, and with pure call-routing platforms in others.

Prospect

A lead that the buyer has begun working — initial contact made, qualification conversation underway, in the buyer's sales pipeline. Created by the buyer's intake out of delivered leads.

Q

Qualified Lead

A lead that meets contracted qualification criteria. The criteria vary by vertical. "Qualified" is a contractual term, not an objective one.

QuinStreet

Publicly traded (NASDAQ: QNST) operator of consumer-finance and insurance lead generation and aggregation businesses. Owns brands including NextGen Leads (insurance) and Modern Health (Medicare). 10-K disclosures are useful primary sources for insurance and consumer-finance vertical economics.

R

Reactivation / Win-back

A buyer-side workflow in which leads that did not convert in the initial intake window are re-contacted later. Common in long-decision verticals like remodeling, financial planning, and B2B SaaS. Reactivation programs carry separate consent considerations.

RESPA *(also: Real Estate Settlement Procedures Act)*

Regulation: 12 U.S.C. § 2601 et seq. Governs settlement service practices on federally related mortgage loans. Section 8 prohibits kickbacks and unearned fees. The CFPB has supervised lead-generation arrangements under Section 8 and made clear in 2015 bulletin guidance that pay-per-lead structures are not categorically prohibited but must reflect reasonable value of services actually rendered.

> **Source:** *12 U.S.C. § 2601 et seq.; CFPB Bulletin 2015-05.*

Revenue Share

A business model in which the lead provider is paid a percentage of buyer revenue from converted leads. Rare in the most lucrative verticals due to legal restrictions (ABA Rule 5.4 in legal, anti-rebating laws in insurance, RESPA Section 8 in mortgage, EKRA/AKS in healthcare).

Ringba

A pay-per-call routing and tracking platform popular in insurance, home services, and legal pay-per-call verticals. Competes with Retreaver, Invoca, and Phonexa in call routing.

S

Shared Lead

A lead sold to multiple buyers in the same geography (typically 2–4, occasionally up to 8). Lower per-lead price, lower per-buyer conversion rate, higher inventory monetization for the seller.

Speed-to-Call

The time elapsed between lead submission and the buyer's first contact attempt. Operators broadly agree that intake conversion drops sharply for delays beyond 5–15 minutes. The single most-cited intake variable.

T

TCPA *(also: Telephone Consumer Protection Act)*

Regulation: 47 U.S.C. § 227, originally enacted 1991, amended several times. Federal statute governing automated calls, prerecorded calls, fax marketing, and (by FCC rulemaking) text messages. Provides for private right of action with statutory damages of $500 per violation, trebled to $1,500 for willful or knowing violations.

> **Source:** *47 U.S.C. § 227.*

Telemarketing Sales Rule (TSR)

Regulation: 16 C.F.R. Part 310. FTC rule governing telemarketing, including the national DNC registry, abandoned-call limits, caller ID requirements, and record-keeping (five-year retention). Overlaps and interacts with the TCPA.

> **Source:** *16 C.F.R. Part 310.*

Traffic Source

The actual origin of consumer interest at the top of the lead funnel. The main buckets: paid search, paid social, SEO and organic content, email/SMS, affiliate networks, outbound B2B, and co-registration paths.

TrustedForm

ActiveProspect's consent capture and verification product. Produces a tamper-evident certificate of the disclosure language and consent action a consumer saw at the moment of form submission. Used by buyers to defend against TCPA claims and to validate the chain of custody on resold leads. Competes with Jornaya (Verisk).

U

UDAP / UDAAP

Regulation: state Unfair and Deceptive Acts and Practices statutes (UDAP) and the federal CFPB's prohibition on Unfair, Deceptive, or Abusive Acts and Practices (UDAAP, 12 U.S.C. § 5531). Provide consumer protection authority that state AGs and the CFPB have used against deceptive lead-generation practices.

> **Source:** *12 U.S.C. § 5531; state UDAP statutes vary.*

Unit Economics

The per-unit profitability of an activity. In lead generation: CPL on the supply side, CPL on the buy side (which is the buyer's per-lead cost), and the resulting CAC after intake conversion. Module 5 covers unit economics in operational detail.

V

Vertical

A market segment defined by the type of service or product the leads are for: legal, home services, insurance, financial services, healthcare, B2B, etc. Most operators specialize in one vertical or a small set of related verticals.

W

Warm Transfer

See Live Transfer / Warm Transfer.

Closing note

This glossary will be updated quarterly along with the regulatory module. If you find a term that's missing, a definition that's drifted out of date, or a citation that's gone stale, please use the feedback form linked in the resource library — that's the input the next revision cycle is built on.